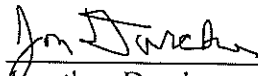


FIRST ENDORSEMENT

Jonathan Darche, Executive Director, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble Sr., Department Advocate's Office, August 13, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-27955 against Detective Michael Magas, Tax Registry No. 950797. The case was conferenced on July 25, 2024, before Assistant Deputy Commissioner of Trials Vanessa Facio-Lince, who approved the negotiated penalty of a Schedule A Command Discipline with a forfeiture of THREE (3) vacation days for DADS No. 2021-27955 after an acceptance by Detective Magas of the findings of substantiation of the allegations contained in the Charges and Specifications. Charges and Specifications will be dismissed for plea purposes.



Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2023-27955

BOOK & PAGE NO.
Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE DT3	SURNAME, MAGAS	FIRST MICHAEL	M.I. T	COMMAND QUEENS ROBBERY SQUAD
SHIELD NO. 4605	TAX REGISTRY NO. 950797	SOCIAL SECURITY NO.	DATE APPOINTED 07/06/2011	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

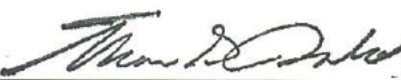
SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL [X]
1 . Detective Michael MAGAS, on or about October 27, 2021, at approximately 1730, while assigned to 094 DT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his/her/their authority as a member of the New York City Police Department, in that DT MAGAS searched § 87(2)(b) in Brooklyn without sufficient legal authority.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 3.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Detective Michael MAGAS, on or about October 27, 2021, at approximately 1730, while assigned to 094 DT and on duty, in the vicinity of § 87(2)(b) Kings County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department., in that DT MAGAS threatened to arrest § 87(2)(b) without sufficient legal authority.	DISMISSED	
3 . Detective Michael MAGAS, on or about October 27, 2021, at approximately 1730, while assigned to 094 DT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his/her/their authority as a member of the New York	DISMISSED	


FIRST DEPUTY COMMISSIONER

9/16/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)


POLICE COMMISSIONER

9/26/24
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-27955
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE DT3	SURNAME, MAGAS	FIRST MICHAEL	M.I. T	COMMAND QUEENS ROBBERY SQUAD
SHIELD NO. 4605	TAX REGISTRY NO. 950797	SOCIAL SECURITY NO.	DATE APPOINTED 07/06/2011	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

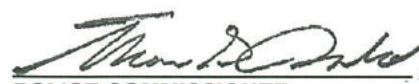
SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL [X]
City Police Department, in that DT MAGAS seized § 87(2)(b) keys to the apartment without sufficient legal authority. 4. Detective Michael MAGAS, on or about October 27, 2021, at approximately 1730, while assigned to 094 DT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his/her/their authority as a member of the New York City Police Department, in that DT MAGAS failed to provide § 87(2)(b) with a business card without sufficient legal authority.	DISMISSED	


FIRST DEPUTY COMMISSIONER

9/16/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)


POLICE COMMISSIONER

9/26/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner September 12, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2021-27955 against Detective Michael Magas, Tax No. 950797, with the recommendation that Charges and Specifications against Detective Magas be dismissed and that Detective Magas receive a Schedule "A" Command Discipline, with the forfeiture of three (3) vacation days; I concur. **FOR YOUR APPROVAL.**



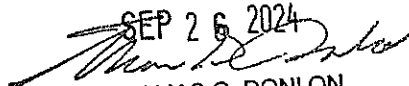
Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc



APPROVED

SEP 26 2024

THOMAS G. DONLON
INTERIM POLICE COMMISSIONER